

Sant Swaroop v. Dakhinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 11 May 2012 · Writ-C No. 23161 of 2012 · **Writ dismissed; relegated to Executive Engineer under clause 6.5(b).**

HEADNOTE

A consumer disputing arrears shown from 2001, though his 7.5 kW connection was energised only in 2004, was held to have a statutory alternative remedy before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was dismissed, with a direction that any complaint be decided under clause 6.5(b) within seven days on the prescribed deposit.

FACTUAL SUMMARY

Sant Swaroop was sanctioned a 7.5 kW connection in 2001, but it was installed and energised only in 2004. He says he paid bills regularly thereafter, yet Dakhinanchal Vidyut Vitran Nigam Ltd. showed arrears from 2001. He sought correction by writ without annexing any representation to the Executive Engineer. The bills themselves told a consumer with a billing dispute to approach the Divisional Office, then the Consumer Grievance Redressal Forum and the Ombudsman.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection; alternative remedy

HOLDING

A writ against disputed electricity bills is not entertained where the consumer has the statutory alternative of approaching the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. If a complaint is made, it is to be decided as provided under clause 6.5(b) within seven days of the complaint, on the consumer depositing before the due date an amount equal to the sum claimed or charges calculated on the average of the preceding six months' bills, whichever is less. ¶ 5-6

FLAG Operative observation cites 'Para 6.5 (b) of the U.P. Electricity Supply Act, 2005'; the clause is in the Supply Code, 2005, not an Act.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ARREARS BILLED FROM 2001, BEFORE ENERGISATION IN 2004, WERE CORRECTLY RAISED

Left to the Executive Engineer if a clause 6.5 complaint is made. ¶ 2